

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Owen Godshall	Team: Squad #10	CCRB Case #: 201800958	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/24/2018 7:00 PM	Location of Incident: 123rd Precinct Stationhouse	Precinct: 123	18 Mo. SOL 7/24/2019	EO SOL 7/24/2019	
Date/Time CV Reported Thu, 01/25/2018 1:15 PM	CV Reported At: IAB	How CV Reported: In-person	Date/Time Received at CCRB Mon, 02/05/2018 10:58 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. SSA Andre Teterycz	03188	907433	123 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SSA Andre Teterycz	Abuse: Sergeant Andre Teterycz refused to provide his name to § 87(2)(b)	
B.SSA Andre Teterycz	Abuse: Sergeant Andre Teterycz threatened to arrest § 87(2)(b)	

Case Summary

On January 25, 2018, § 87(2)(b) and her daughter, § 87(2)(b) filed this complaint with IAB in-person. On February 5, 2018, the complaint was forwarded to the CCRB via IAB log § 87(2)(b).

Prior to this incident, § 87(2)(b) had been involved in a vehicle collision. When she received the police accident report that was prepared to document the collision, she found that the report contained several inaccuracies. At approximately 7:00 p.m. on January 24, 2018, § 87(2)(b) and § 87(2)(b) traveled to the 123rd Precinct stationhouse in order to have the accident report amended. There, § 87(2)(b) and § 87(2)(b) spoke to Sgt. Andre Teterycz. § 87(2)(b) and Sgt. Teterycz got into an argument over whether the report could be amended. Eventually, Sgt. Teterycz told § 87(2)(b) to leave the stationhouse. As § 87(2)(b) walked out of the building, she asked Sgt. Teterycz for his name. Sgt. Teterycz told § 87(2)(b) multiple times that he would give her his name later, but he never did (**Allegation A: Abuse of Authority – Refusal to provide name**, § 87(2)(g)). Sgt. Teterycz threatened to arrest § 87(2)(b) if she did not leave the stationhouse (**Allegation B: Abuse of Authority – Threat of arrest**, § 87(2)(g)). § 87(2)(b) and § 87(2)(b) then left the stationhouse. Neither of them was arrested or issued a summons.

No video footage was found for this incident. § 87(2)(b) provided an audio recording of the incident that she made with her cell phone. The audio was attached in IA #38 (See Board Review #01: Audio Recording) and summarized in IA #43 (See Board Review #02: Audio Summary).

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Andre Teterycz refused to provide his name to

§ 87(2)(b)

It is undisputed that § 87(2)(b) asked Sgt. Teterycz several times for his name after he told her to leave the stationhouse. Sgt. Teterycz told § 87(2)(b) that he would give it to her later, outside of the stationhouse. Sgt. Teterycz did not ultimately provide his name in response to § 87(2)(b)'s requests.

§ 87(2)(b) and § 87(2)(b) were interviewed at the CCRB on February 21, 2018 (See Board Review #03-04: Civilian Statements). Both of them stated that they initially approached an officer at the front desk in an effort to see the 123rd Precinct's commanding officer. Sgt. Teterycz approached them and asked § 87(2)(b) what she needed help with. § 87(2)(b) and § 87(2)(b) both stated that Sgt. Teterycz told them that he was a sergeant. They spoke to Sgt. Teterycz for approximately twenty minutes in the stationhouse's muster room. At several points during this conversation, § 87(2)(b) asked Sgt. Teterycz for his name. He responded to each request by promising to provide his name later. At the conclusion of the conversation, Sgt. Teterycz told § 87(2)(b) and § 87(2)(b) to leave the stationhouse, § 87(2)(b) asked Sgt. Teterycz for his name several more times. At first, Sgt. Teterycz reiterated his promise to tell them his name later. On § 87(2)(b)'s final request, he told her that he would not give her "anything." Sgt. Teterycz did not ultimately provide his name to § 87(2)(b) or § 87(2)(b).

Sgt. Teterycz was interviewed at the CCRB on April 24, 2018 (See Board Review #05: Sgt. Teterycz's Statement). He stated that he provided his name to § 87(2)(b) and § 87(2)(b) when he first approached them by the front desk. Sgt. Teterycz also stated that § 87(2)(b) asked him several times for his name after she was ordered to leave, and that he told her that he would give it to her later. When asked why he did not provide his name immediately, Sgt. Teterycz provided three reasons. First, he was occupied with administrative duties at the stationhouse at the time, and did not have time to speak any longer with § 87(2)(b). Second, he wanted to incentivize § 87(2)(b) to leave the stationhouse by promising to provide his name if she complied with his orders. Third, he felt that § 87(2)(b) had ample opportunity to read his nameplate during their interaction. Sgt. Teterycz assumed that § 87(2)(b) would wait for him outside of the stationhouse to receive his name. About a minute after § 87(2)(b) and § 87(2)(b) left the building, Sgt. Teterycz went outside to give his name. He found that they had gone by then.

§ 87(2)(b)'s audio recording captured the entirety of this incident, beginning during § 87(2)(b)'s conversation with another officer at the front desk. Sgt. Teterycz is first heard at 00:55 seconds on the recording, when he asks § 87(2)(b) "What is the issue regarding?" The recording includes the remainder of their conversation, spanning over twenty-two minutes. At 07:45 on the recording, a male officer briefly speaks to Sgt. Teterycz and addresses him as "Sergeant." No other reference is made to his name or rank. Neither § 87(2)(b) nor § 87(2)(b) asks Sgt. Teterycz for his name until near the end of the conversation. At 21:17 on the recording, Sgt. Teterycz attempts to end the interaction by telling § 87(2)(b) "Dear, have a good day. Call your family or call an attorney. Have a good day." § 87(2)(b) asks him for his name. Sgt. Teterycz replies, "I'm going to give you my name as you're leaving." § 87(2)(b) goes on to state, "I will take your name." Sgt. Teterycz responds, "Yes, as you're leaving." At 22:05 on the recording, Sgt. Teterycz orders § 87(2)(b) to leave the stationhouse. As they leave, § 87(2)(b) tells Sgt. Teterycz, "I want your name." He replies, "No, get out." She again states, "I want your name." Sgt. Teterycz replies, "Dear, you're going to be in my cell in a second." § 87(2)(b) does not ask for his name again. She and § 87(2)(b) then leave. The recording ends at 23:03 as they leave the stationhouse. Sgt. Teterycz is not heard stating his name or rank at any time on the recording (See Board Review #01: Audio Recording).

NYPD Patrol Guide procedure 203-09 states that officers must courteously and clearly state or otherwise provide their rank, name, shield number and command to anyone who requests them to do so. Officers must allow the person ample time to note this information (See Board Review #06: Legal Reference).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation (B) Abuse of Authority: Sergeant Andre Teterycz threatened to arrest § 87(2)(b)

It is undisputed that Sgt. Teterycz and § 87(2)(b) argued with each other for approximately twenty minutes in regards to § 87(2)(b)'s disputed accident report. Eventually, Sgt. Teterycz told § 87(2)(b) to leave the stationhouse. When § 87(2)(b) did not leave, he repeated this command several times. He then threatened to arrest her.

Both § 87(2)(b) and § 87(2)(b) stated that § 87(2)(b) had asked for Sgt. Teterycz's name several times throughout the entire conversation. He declined to respond to any of these requests. Later, after Sgt. Teterycz told them to leave the stationhouse, § 87(2)(b) asked him several more times for his name. Sgt. Teterycz again declined to provide his name. On § 87(2)(b)'s final request, Sgt. Teterycz threatened to arrest § 87(2)(b). He did not state what § 87(2)(b) would have been arrested for. § 87(2)(b) and § 87(2)(b) left the stationhouse after Sgt. Teterycz threatened § 87(2)(b).

Sgt. Teterycz stated that § 87(2)(b) did not ask for his name until after he told her to leave. He initially denied that he told § 87(2)(b) that she would be arrested at any point. When specifically asked if he told her, "Dear, you're going to be in my cell in a second," Sgt. Teterycz stated that he did not explicitly recall saying this, but might have. He explained that he might have told § 87(2)(b) that she could be arrested when she ignored his instruction to leave the stationhouse. He did so in order to gain her compliance. Sgt. Teterycz noted that if § 87(2)(b) continued to refuse to leave, she could potentially have been arrested for disorderly conduct and trespassing. Later, after listening to § 87(2)(b)'s recording of the interaction, he stated that § 87(2)(b) also approached him and pointed her finger at his chest. Sgt. Teterycz was concerned that § 87(2)(b) was going to push or hit him. This concern also contributed to his decision to tell § 87(2)(b) that she would be arrested if she did not leave.

§ 87(2)(b)'s audio recording captured the entirety of Sgt. Teterycz's exchange with § 87(2)(b). They spoke to each other for approximately twenty minutes, during which time Sgt. Teterycz explains that he could not amend § 87(2)(b)'s accident report. § 87(2)(b) however, continues to press the issue. Sgt. Teterycz then attempts to end the conversation at 21:17 on the recording. § 87(2)(b) continues to argue with Sgt. Teterycz about her accident report. He repeats his command to leave the stationhouse five more times during this argument. At 22:18 on the recording, both § 87(2)(b) and Sgt. Teterycz accuse each other of pointing a finger at the other person. § 87(2)(b) states, "I want your name." Sgt. Teterycz states, "No, get out." § 87(2)(b) again states, "I want your name." Sgt. Teterycz states, "Dear, you're going to be in my cell in a second. Get out." § 87(2)(b) states, "Let's go." Sgt. Teterycz states, "I promise you, you won't be getting out tonight."

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
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[REDACTED]
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§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) [REDACTED] or § 87(2)(b) [REDACTED] has been a party (See Board Review #07: Civilian CCRB Histories).
- Sgt. Teterycz has been a member of service for twenty-four years and has been a subject in six CCRB complaints and ten allegations, none of which were substantiated. [REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]

Mediation, Civil and Criminal Histories

- § 87(2)(b) [REDACTED] declined to mediate this complaint.
- A Notice of Claim request was submitted to the NYC Comptroller's office on April 26, 2018. It will be included in the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)] [REDACTED]
[REDACTED]
[REDACTED]

Squad No.: _____

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date

Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date

Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date